

Smt. Tejaswini Bhushan Ahire vs Shri. Bhushan Vasantao Ahire on 24 June, 2019

Author: K.K.Tated

Bench: K.K. Tated

514.166.19-mca

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

CIVIL APPELLATE JURISDICTION

Misc. Civil Application No.166/2019

Office Notes, Office Court's or Judge's orders.
Memoranda of Coram,
appearances, Court's
orders or directions
and Registrar's orders

Mr. V. S. Talkute for the Applicant

CORAM : K.K.TATED.J.
DATED : JUNE 24, 2019

P.C.

1 Pursuant to the praecipe filed by the learned counsel for the Applicant, the matter is taken on production board.

2 This Application is filed by wife under section 24 of the Code of Civil Procedure, 1908 for transfer of M.P.No.140/2019 filed by Respondent / husband for divorce

u/s.13(1)(ia)(ib) of the Hindu Marriage Act, 1955 before the Civil Judge, Senior Division Jalgaon to the Civil Judge, Senior Division Malshiras, Dist. Solapur.

3 The learned counsel for the Applicant submits that it is very difficult for the Applicant to travel to attend the petition filed by the Respondent husband for divorce along with her child, aged 6 and half years. Hence, in the interest of justice, this Hon'ble Court be pleased to transfer the marriage petition from Jalgaon to Malshiras, Dist. Solapur.

514.166.19-mca 4 The learned counsel for the Applicant submits that the next date before the court at Jalgaon is 27.06.2019. He submits that the Applicant may be permitted to serve the Respondent by hand delivery in the Jalgaon court with the help of Bailiff, if necessary.

5 Considering the submissions made by the learned counsel for the Applicant and para 12 of the Civil Application, following order is passed:

- a. Issue notice to the Respondent for final disposal, returnable on 26.07.2019.
- b. The Applicant is permitted to serve the Respondent along with entire proceedings, either by registered post AD and/ or by hand delivery and file an affidavit of service to that effect on or before the next date.
- c. Liberty granted to the Applicant to serve the Respondent by hand delivery in HMP No.140/2019, which is due for hearing, in the court of Civil Judge, Senior Division Jalgaon court with the help of Bailiff, if necessary.

S.O. to 26.07.2019.

(K.K.TATED, J.)